MEMORANDUM OF UNDERSTANDING

This MEMORANDUM OF UNDERSTANDING ("**MOU**") is made and executed at Mumbai on this [•] day of [•], 2026 ("**Execution Date**");

BETWEEN

ASMITA JYOTI CO-OPERATIVE HOUSING SOCIETY LIMITED, a co-operative housing society registered under the Maharashtra Co-operative Societies Act, 1960 ("**MCS Act**") bearing registration no. BOM/W-P/HSG(TC)/6691/92-93, having its registered office at Charkop Naka, Marve Road, Malad (West), Mumbai – 400 095, acting through its duly authorised office bearers, namely (i) [•], the Chairman, (ii) [•], the Secretary and (iii) [•], the Treasurer, authorised by the resolution passed at the special general body meeting of the members of the Society held on [•], hereinafter referred to as the "**Society**" (which expression shall, unless repugnant to the context or meaning thereof, mean and include its members for the time being and its successors and assigns) of the **ONE PART**;

AND

[NAME OF DEVELOPER], a company incorporated under the Companies Act, 2013, having CIN [•] and its registered office at [•], acting through its authorised signatory [•], authorised vide board resolution dated [•], hereinafter referred to as the "**Developer**" (which expression shall, unless repugnant to the context or meaning thereof, mean and include its successors-in-interest and permitted assigns) of the **OTHER PART**.

The Society and the Developer are collectively referred to as the "**Parties**" and individually as a "**Party**".

WHEREAS:

A. The members of the Society ("**Existing Members**") hold 816 (eight hundred and sixteen) residential tenements aggregating 4,55,952 square feet carpet area and 59 (fifty-nine) commercial units aggregating 11,241 square feet carpet area in the buildings standing on the Land (defined below), as set out in **Annexure A** (the carpet area of each unit so stated being its "**Existing Carpet Area**").

B. The Collector, Mumbai Suburban District, has allotted and granted to the Society land admeasuring 46,000 square metres (including reservations) and 34,390.60 square metres (excluding reservations), or thereabouts, bearing C.T.S. Nos. 6A/1/1 and 6A/1/5 of Village Malavani, situated at Charkop Naka, Marve Road, Malad (West), Mumbai – 400 095, more particularly described in the **First Schedule** ("**Land**"), which the Society presently holds on Occupancy Class II tenure.

C. The Society had earlier executed a development agreement dated 7 October 2009 with M/s. Bhavi Developers in respect of the Land, registered with the office of the Sub-Registrar of Assurances under Serial No. 3926 of 2010 ("**Earlier Development Agreement**"). The Earlier Development Agreement was ordered to be cancelled by the District Collector, Mumbai Suburban District, by order dated 12 September 2011, and the consequential rectification has been recorded in the relevant Index II. Copies of the documents and records relating

thereto available with the Society were furnished to the Developer along with the Tender (defined below).

The Developers hereby acknowledges and confirms that it has been duly apprised of the aforesaid facts and circumstances and has been provided an opportunity to examine the documents and records furnished by the Society in relation thereto, and shall be deemed to have taken the same into consideration while submitting its bid/tender and entering into this MOU.

D. The Society resolved to redevelop the Land and appointed M/s. Deodhar Associates, Architects & Project Management Consultants, as its project management consultant ("**PMC**"). The Society invited offers by way of a tender document ("**Tender**") in accordance with Section 79A of the MCS Act and the directions issued thereunder, including Government Resolution dated 4 July 2019 ("**79A Directions**").

E. The Developer submitted its offer, which was revised from time to time, the offer being dated [•] ("**Offer**"). At its special general body meeting held on [•] in the presence of the authorised officer of the office of the Deputy Registrar, Co-operative Societies, the Society selected the Developer for the redevelopment. The Society issued a letter of intent dated [•] ("**LOI**"), which the Developer accepted by its letter dated [•].

F. The Parties are entering into this MOU only to record (i) the acceptance of the Offer; (ii) the Developer's acceptance of its obligation to convert the Land from Occupancy Class II to Occupancy Class I; and (iii) the bank guarantee and liquidated damages to be provided by the Developer. All other terms and conditions of the redevelopment shall be mutually agreed at the time of the development agreement to be executed and registered between the Parties ("**Development Agreement**").

NOW THEREFORE THE PARTIES AGREE AS FOLLOWS:

1. ACCEPTANCE OF THE OFFER

1.1 The Society accepts the Offer, and the Developer confirms that the Offer is firm, irrevocable and unconditional. The Parties agree and accept the following commercial terms of the Offer ("**Agreed Terms**"):

(a) **Additional area:** each residential Existing Member shall be allotted, free of cost and on ownership basis, a new unit of RERA carpet area equal to his / her Existing Carpet Area plus [•]% additional area, and each commercial Existing Member a new unit of RERA carpet area equal to its Existing Carpet Area plus [•]% additional area. The stamp duty, registration charges, GST and other taxes on the existing and additional area shall be borne by the Developer.

(b) **Rent (displacement compensation):** INR [•] per square foot of Existing Carpet Area per month for residential units and INR [•] per square foot of Existing Carpet Area per month for commercial units, for the first 12 (twelve) months, with an escalation of [•]% for every subsequent period of 12 (twelve) months, payable from the date of vacating the existing unit until possession of the new unit is offered.

(c) **Corpus:** a non-refundable corpus of INR [•] (Rupees [•]) payable by the Developer to the Society within [7 (seven)] days from the registration of this MOU, to be used by the Society for the payment of its consultants for the redevelopment.

(d) **Other commercial terms:** the other commercial terms set out in the Offer, a copy of which is annexed as **Annexure B**.

1.2 The Agreed Terms shall be incorporated in the Development Agreement without any reduction or dilution. In no event shall any Agreed Term be less favourable to the Society or the Existing Members than the minimum stipulated in the Tender.

2. CONVERSION OF THE LAND

2.1 The Developer agrees and accepts that it shall, at its sole cost, pay all premiums, charges, fees and other amounts required to convert the Land from Occupancy Class II to Occupancy Class I in the name of the Society ("**Conversion**"), and shall complete the Conversion within 90 (ninety) days from the Execution Date.

2.2 The Developer acknowledges that the Society has already applied to the Collector, Mumbai Suburban District, for the Conversion by its application dated 5 September 2026. The Society shall remain the applicant, and the Developer shall not make any fresh application in its own name. The Developer shall, at its cost, follow up the said application with the Collector and all other authorities until the Conversion is completed, and the Society shall sign such further documents as may reasonably be required, at the cost of the Developer.

2.3 All amounts paid by the Developer for the Conversion shall not be recoverable from the Society or the Existing Members in any circumstances. Any failure or delay in the Conversion shall not affect the Agreed Terms in any manner.

2.4 The Developer confirms that it has examined the documents relating to the Earlier Development Agreement referred to in Recital C, and has taken the same into consideration in submitting the Offer.

3. BANK GUARANTEE AND LIQUIDATED DAMAGES

3.1 On or before issuing the notice to the Existing Members to vacate their existing units, the Developer shall furnish to the Society an unconditional and irrevocable performance bank guarantee of not less than INR 40,00,00,000/- (Rupees Forty Crore only), issued by a nationalised bank or a top private sector bank approved by the Society, free of any condition that may prevent or delay its invocation ("**Bank Guarantee**").

3.2 In addition to the Bank Guarantee, the Developer shall create a lien in favour of the Society over, and keep unencumbered and unsold, premises admeasuring not less than …… (…….) square feet of RERA carpet area in the sale component ("**Lien Area**"). Alternatively, in lieu of the Lien Area, the Developer shall furnish an additional bank guarantee of INR …… (…… Crore only), so that the aggregate bank guarantee is INR ……. (…….. Crore only).

3.3 The Developer shall complete the redevelopment, with the full occupation certificate, within ……. (……) months from the date on which the last Existing Member vacates his / her / its

existing unit. If the Developer fails to do so, it shall pay to the Existing Members, by way of liquidated damages, INR 1,00,00,000/- (Rupees One Crore only) for each fortnight of delay or part thereof, distributed among the Existing Members in proportion to their Existing Carpet Areas. Liquidated damages shall be in addition to, and not in substitution of, the rent payable under Clause 1.1(b).

3.4 The Bank Guarantee and the Lien Area shall be extended for any extension of time before such extension is granted. The detailed terms of invocation and release of the Bank Guarantee and the Lien Area shall be recorded in the Development Agreement, consistent with this Clause 3.

4. ALL OTHER TERMS

4.1 All other terms and conditions of the redevelopment, including the timelines, approvals, hardship compensation, deposits and shifting charges, car parking, amenities and specifications, defect liability, events of default and termination, shall be mutually agreed between the Parties at the time of the Development Agreement.

4.2 This MOU does not grant to the Developer any development rights, licence, possession or any right, title or interest in the Land. There shall be no concluded contract for the redevelopment until the Development Agreement is executed and registered.

5. TERMINATION

5.1 The Society may terminate this MOU by written notice to the Developer if the Developer fails to pay the corpus or complete the Conversion within the stipulated time, if the Development Agreement is not executed and registered within [6 (six)] months from the completion of the Conversion, or if the Developer otherwise breaches this MOU. The Developer shall not claim from the Society or the Existing Members any cost, expense, premium, corpus, conversion charge, compensation, interest or other amount paid or incurred by it.

5.2 The Developer shall not be entitled to terminate this MOU, or to withdraw from or vary the Offer, in any circumstances.

5.3 If the Developer is terminated as mentioned in clause 5.1 above, then the Society shall be free to appoint any other developer in accordance with the 79A Directions.

6. GENERAL

6.1 The stamp duty and registration charges on this MOU shall be borne by the Developer.

6.2 This MOU shall be governed by the laws of India, and the courts at Mumbai shall have exclusive jurisdiction.

6.3 This MOU shall be read with the Tender, the Offer and the LOI, and shall stand superseded by the Development Agreement upon its execution and registration.

IN WITNESS WHEREOF the Parties have executed this MOU on the day and year first above written.

SIGNED AND DELIVERED by the within named Society,

ASMITA JYOTI CO-OPERATIVE HOUSING SOCIETY LIMITED,
through its authorised office bearers, authorised vide resolution
passed at the special general body meeting held on [•]
Chairman: _____ Secretary: _____ Treasurer: _____
In the presence of: 1. _____ 2. _____

SIGNED AND DELIVERED by the within named Developer,
[NAME OF DEVELOPER], through its authorised signatory,
authorised vide board resolution dated [•]
Authorised signatory: _____
In the presence of: 1. _____ 2. _____

FIRST SCHEDULE

(Description of the Land)

All that piece and parcel of land admeasuring 46,000.00 square metres (including reservations) and 34,390.60 square metres (excluding reservations), or thereabouts, allotted by the Collector and granted to Asmita Jyoti Co-operative Housing Society Limited, bearing C.T.S. Nos. 6A/1/1 and 6A/1/5 of Village Malavani, Taluka Borivali, Registration District and Sub-District of Mumbai Suburban, situated at Charkop Naka, Marve Road, Malad (West), Mumbai – 400 095, together with the buildings standing thereon, and bounded as follows: North: [•]; South: [•]; East: [•]; West: [•].

ANNEXURE A – EXISTING UNITS AND CARPET AREAS

Building	Carpet area per unit (sq. ft.)	Number of units	Total area (sq. ft.)
D-1 to D-8	468	336 (42 × 8)	1,57,248
D-9 (1st to 7th floor)	468	42	19,656
D-9 (ground floor)	420	6	2,520
D-10 / D-11	464	48	22,272
E-1	314.14	42	13,193
C-1	546	84	45,864
B-1	651.74	86	56,049
A-1 and A-2	809	172 (86 × 2)	1,39,148
Total – residential		816	4,55,952
Commercial (ground and first floor of D-10 / D-11, Plot B)	70 to 560	59	11,241

(Member-wise list to be annexed.)

ANNEXURE B – OFFER

[Copy of the Offer dated [•] submitted by the Developer to be annexed.]